

after the call has occurred, we will indicate in the notice how, and for how long, this replay will be accessible.

Guidance

The Company may, in its discretion, provide information to the public about its expectations for future financial results. The Company's policy or decisions regarding providing such information will be determined by the Chief Financial Officer. In the event that the Company provides guidance or any updates to guidance, it will do so only in conformance with SEC rules. The Company will not comment on any third party's forecasts or expectations of the Company's financial performance.

Investment Analyst Reports

The Company will not review investment analyst reports except, in its discretion, to correct factual errors pertaining to historical information. Any such review will be the responsibility of the investor relations team. Whenever it reviews an investment analyst report, investor relations will inform the analyst in writing that the report has been reviewed for factual errors pertaining to historical information only and that the Company does not accept, adopt or in any way comment on the premises, assumptions, analysis, financial models or conclusions contained in such report. The Company will not distribute investment analyst reports to third parties without the prior approval of the Company's Legal Team and Investor Relations Team nor will the Company provide hyperlinks to investment analyst reports.

Investor Conferences

We will endeavor to make presentations given by the Company at investor or other financial conferences public through a widely-disseminated notice to attend the conference or hear the presentation through a dial-in number or webcast. A member of the Company's Investor Relations Team must be invited to attend any conferences where such presentations are made. The Company will not give new material information at such conferences unless the public has been provided access.

Analyst/Investor Meetings

Our Investor Relations Team must be copied on all email correspondence with investment analysts or investors. Additionally, if possible, we should include a member of the Investor Relations Team or Legal Team in all in-person and telephonic meetings with analysts or investors.

Commenting on Rumors

Generally, we will not confirm or deny rumors or market speculation about the Company or our business. If asked about a rumor or market speculation, spokespersons must state that our policy is not to comment on rumors or market speculation.

VIOLATIONS OF THIS POLICY HAVE MEANINGFUL CONSEQUENCES: DON'T HESITATE TO REPORT

Any violations of this Policy must be brought to the attention of our Chief Legal Officer as quickly as possible. If you want to submit a concern or complaint regarding a possible violation of this Policy anonymously, you should follow the procedures outlined in our

Whistleblower Policy. If necessary, our Chief Legal Officer will bring such reports to the attention of our Audit Committee. Anyone who violates this Policy may be subject to disciplinary measures, which may include termination of employment.

CHANGES TO THIS POLICY

Our Board reserves the right in its sole discretion to modify or grant waivers to this Policy. Any amendments or waiver may be publicly disclosed if required by applicable laws, rules and regulations.

SECTION: legal/customer-negotiations.md

The purpose of this Handbook resource is to provide all GitLab team members with a clear path in navigating any type of go-to-market Legal Commercial requests or processes. The information below is intended to help you to find and access certain information on your own, as well as clearly establish how to best connect with, and coordinate assistance from, the GitLab Commercial Legal team.

Note: All references to 'GitLab Legal' or 'Legal' within this Handbook page refers to the Commercial Legal team.

(1) Operational - How to work with and engage GitLab Legal including requirements to close a deal, general FAQ for legal ops, including some parallels to Finance and Deal Desk matters.

(2) Educational - Learning about Legal and how our agreements work to better assist Sales during the sales cycle, including proactive advice and education to enable Sales to feel more confident when a customer has legal related questions.

The information contained on this page is organized into two distinct categories Operational and Educational as follows:

OPERATIONAL	EDUCATIONAL
How to Reach the Legal Commercial Team	Overview of GitLab Agreements
How do I get an Agreement signed (including NDAs, DPAs and Letters of Authorization)	When does GitLab negotiate
Clearing Export Review in SFDC	What is Open Source Software?
Completing Vendor Request Forms	GitLab Subscription Agreement ("Subscription Agreement") Basics
Requests for GitLab Financial Information and Insurance Certificates	Business Associate Agreements
Escalation Process	Data Privacy and the GitLab Data Processing Addendum
Request for Name Change or Change in Control	Contract Lifecycle Management (CLM) Process
Legal Commercial Coverage Model	
GitLab Issues: Collaborating Cross-Functionally	
Best Practices for a Legal Call	
Request for Training (LevelUp) Certification Purchases	
Request for an Evaluation Agreement	

OPERATIONAL

How to Reach the Legal Commercial Team

Different situations require different approaches. In the vast majority of cases regarding revenue-related requests, the proper way to engage the Legal team is through Salesforce (SFDC) by creating a legal request per the process below.

1. Select the "Legal Request" button in the drop down menu at the upper right corner of the customer's opportunity in SFDC (or at the account level if the query is related to a partner). If an opportunity does not exist, please open a \$0 opportunity and then create the Legal Request from such opportunity, following the steps set out in this section.

1. Once the Legal Request is correctly created, the request is logged in a queue where the appropriate Legal team member will assign themselves to the case and communicate with the requestor as applicable.

1. Step-by-step directions on opening a Legal Request is shown in [this video] (<https://youtu.be/Zalqiadqwvk>), as well as described below.

- Select "Legal Request" located at the top of your Opportunity in SFDC.
 - Choose the most appropriate answers for each field in the drop-down menu, add all relevant details in the "Notes" Section and upload any related document, then hit "Submit". Please add as many details as possible and include urgency of the request or deadline, as this will allow the Legal team member to plan and prioritize accordingly.
 - Once properly submitted, a new legal request will be added to the Legal team's queue and the appropriate team member will assign the case to themselves to assist you.
 - You will also receive an automated message via email as well as in the Chatter section of your newly created legal case, which will, depending on the legal request type, outline what documents and/or information the legal team needs to assist you. Alternatively, you may be pointed to resources that might answer your query directly. Please review this message and make sure that all necessary information is provided, and documents are attached.
 - The legal request will be reviewed, answered and the requestor will be @ mentioned.
 - Once the request is addressed, the legal request will be closed by the legal team member.
1. Do not tag @Legal in SFDC as the entire team gets unnecessarily notified.
1. All agreements or documents for a customer's particular opportunity should be attached in the same Legal Request: e.g. a customer returns redlines to both the Subscription Agreement and their order form, both should be uploaded to the same Legal Request.

Reminder: Only one SFDC Legal Case should be opened for each opportunity.

How do I get an Agreement Signed

1. No one in the Sales organization is authorized to sign any agreements. Only certain individuals may execute on behalf of GitLab, see Authorization Matrix here (as updated from time to time). If you have any questions, please reach out to the Legal team member who has been assisting with the applicable request.

1. All agreements require a Legal approval stamp in order to be signed. This stamp is placed on the agreement by a Legal team member when an executable version is reached.

NOTE - the Legal Stamp is not a signature

1. Once the Agreement has been stamped by Legal, follow the DocuSign Process to send the agreement for signature within SFDC.

1. All Sales Team Members have DocuSign access, please work with Sales Ops for any questions on how to use it. Please be sure to copy the applicable Legal team member for all fully executed agreements

Need an NDA signed? Follow the process for Team Members with DocuSign access.

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How to Get a Data Processing Addendum (DPA) Signed

GitLab includes a signed version of the DPA on the Terms of Use website. As stated within the Subscription Agreement, this DPA is applicable to all customers and does not need to be countersigned. In addition, as stated within the header of the DPA, a customer's acceptance of the Subscription Agreement shall be treated as its agreement to the DPA.

Letters of Authorization (LOA)

Visit the Partner Operations page to learn how partners can request a Letter of Authorization.

LOA Review Steps:

1. Once the Partner has executed or otherwise clicked to accept a GitLab partner agreement, credentials and access to the partner portal will be made available to allow a partner to request an LOA. When a partner initiates a request for an LOA, Ecosystem Operations will receive the request via DocuSign at partnersupport@gitlab.com to confirm that the partner is a valid and authorized partner. Once confirmed Ecosystem Operations, Legal will receive an email via DocuSign to loa@gitlab.com.

1. Once the DocuSign process is initiated by the partner and Ecosystem Operations has confirmed that the requesting partner is a valid and authorized partner, the LOA will be routed to the Legal team to add a Legal Stamp, and then to a GitLab authorized signatory for execution. Upon completion, the fully executed LOA will be distributed via DocuSign to GitLab Legal and the partner.

1. If a partner requests a non-standard LOA with custom terms, please open a Legal Request in SFDC as outlined above.

Export Review in SFDC

1. Only Legal can clear the accounts that are flagged by the export compliance tool, please do not tag any other groups for assistance with these requests.

1. For more information and instructions, please see the Trade Compliance Handbook page.

RFP Process

With regards to completing a Request for Proposal ("RFP"), sometimes referred to as RFIs, RFQs or RFXs, please find information in the RFP Process handbook page on how sales team members can operate as the DRI to utilize the existing Answer Base and collect relevant information from cross-functional stakeholders.

Completing Vendor Request Forms

It is the sales team member's responsibility to complete vendor request forms

1. These documents typically: (i) contain various non-legal elements that require review by appropriate GitLab stakeholders; and (ii) often include information already publicly available on the Company Information page, GitLab Investor Relations page GitLab Handbook or GitLab.com. Sales team members can significantly reduce legal review time by first consulting these public resources before reaching out to the Legal team.

Included on the Company Information Page are:

- Address / information related to each GitLab entity
- All banking information
- ECCN Number
- NAICS Code
- Dun and Bradstreet Number
- And other relevant corporate information

1. For information not found on the Company Information Page, Sales team members should identify the appropriate GitLab department owners for the remaining matters. You can contact Deal Desk via the Sales Order Process page to coordinate finance requests, or alternatively, engage the Finance team within the Finance Slack channel. If uncertain about the correct department, Legal can provide guidance on the proper routing.

1. GitLab's W9 is located on the Finance Forms page

1. If there are Security-related questions that are not found in GitLab's Trust Center, the Sales team member should engage the Field Security Team via the Customer Assurance Activities Page.

1. For tax specific questions, the Sales team member should engage the Tax Team within the Tax Slack Channel or in the SFDC chatter if there is already an existing SFDC case. For Tax Certificate requests please email the Finance team at 'tax@gitlab.com'.

ONLY OPEN A LEGAL REQUEST IF: (i) there is an explicitly identified legal question; and/or (ii) a legal stamp is needed for GitLab signature on the document.

Requests for GitLab Financial Information and Insurance Certificates

1. For Insurance Certificate requests, please open a Legal case in SFDC. Note that our Certificate of Insurance is GitLab's confidential information and either an NDA or agreed to Subscription terms need to be in place prior to distribution.

1. Regarding GitLab financial information, GitLab is a public company and its public filings can be found on SEC.gov or on GitLab's Investor Relations website

Escalation Process

If a customer or partner has requested material non-standard terms, and the transaction merits additional consideration by GitLab's leadership, please follow the GitLab Escalation Process (the "Process"). The Process sets forth factors to consider before escalating material non-standard requests to leadership, including initial threshold considerations, ensuring the matter receives the appropriate level of review, instructions on properly documenting the escalation, etc.

Note This document is only available for GitLab Team Members.

Request for Name Change or Change in Control

Occasionally GitLab will receive a notice from a customer or partner outlining either a change of their company's legal name or a change in control of the company. The following steps outline the process to have the customer or partner's account updated in SFDC.

1. Customer provides name change notice to Sales/Ecosystems.

1. Sales/Ecosystems opens a Legal Request in SFDC.

1. Legal confirms whether name change OR change in control:

a. For name changes only, Customer provides financial documentation, W9 or W8BEN to Sales/Channels.

- Sales/Ecosystems uploads documentation to SFDC.
- Legal will review the provided documentation, and if necessary, draft an Amendment to document the name change.
- Legal will provide to Sales/Ecosystems for Customer's/partner's review and execution.
- Sales/Ecosystems Ops updates the applicable information in SFDC.
- Legal, upon confirming Sales/Ecosystems Op's work is complete, closes the legal case.

1. For change of control, Legal confirms transaction category (acquisition, divestiture, asset sale, merger, insolvency).

- Legal will review customer/partner documentation and existing agreements.
- Legal will draft the appropriate transfer document and will provide to Sales to send to Customer/partner.
- Customer/partner provides signed consent documentation to Sales/Ecosystems.
- Sales/Ecosystems Ops updates the applicable information in SFDC.
- Legal, upon confirming Sales/Ecosystems Op's work is complete, closes the legal case.

Legal Commercial Coverage Model

1. Please review the Legal Coverage Model which provides an overview of the GitLab Legal coverage model by region & segment. NOTE: this is available to GitLab team members only

1. Even though this resource provides individual contact information, please follow the applicable steps to open a Legal Request if you have a need related to a customer.

1. Please note this model is a guide, as the specific team member assigned will take into consideration current work-flow and subject-matter expertise.

Collaborating Cross-Functionally with GitLab Issues

For matters that necessitate being handled outside of SFDC (e.g. project-based work, or topics that require input from team members w/o SFDC access) and require the Legal team's attention, please (i) open an Issue in the Legal and Compliance Project; (ii) select the appropriate Issue Template; (iii) apply the label legal-commercial::to-do, and (iv) if you know which Legal team member you will be working with, include them as an Assignee. This will update the Commercial Legal Issue Board for the Legal team's benefit, and allow the team to pick up and/or assign appropriately. We also use the following labels to designate status:

- legal-commercial:in progress means the Commercial Legal team is actively working on the

issue.

- legal-commercial:pending requester means the Commercial Legal team has a requirement or task that must be met by the requester before the issue progresses.
- legal-commercial:done means the Commercial Legal team has finished their portion of the issue.

Best Practices for a Legal Call

Please review the GitLab Legal Best Practices Resource which outlines best practices when contemplating a call between Legal and customer or partner's legal representative.

NOTE: This is available to GitLab Team Members only

Request for Training (LevelUp) Certification Purchases

Training Certification Vouchers are available to purchase via Order Form and are to be redeemed in LevelUp.

Order Form Process for Sales:

- Determine which Certification(s) are being ordered by the Customer and the quantity;
- Generate the complete and accurate quote in Salesforce;
- Open a legal case in Salesforce for preparation of a modified Certification Order Form;
- Ping Deal Desk in the legal case Chatter requesting a Word Doc of the Order Form;
- Legal will modify the Order Form in accordance with written procedures based on the Certification(s) being purchased.

Request for a Trial or Evaluation Agreement

All customers that desire free access to GitLab Software should be directed to initiate a free trial for access to the GitLab Software, which is subject to and governed by GitLab's Subscription Agreement. A free trial is typically used by a customer for internal evaluation, and, as applicable, may also support a more involved proof of value guided by GitLab.

If a customer declines the trial process and is adamant to have a separate Evaluation Agreement, the sales team member or solutions architect should:

- Open a Legal Request to request an Evaluation Agreement with Request Form.
- The Legal Request should (i) include a request for approval from the Area Sales Manager or higher; and (ii) set forth applicable details to complete the Request Form, such as customer contact information, length of evaluation, number of users, etc.

Upon obtaining the necessary approvals, the applicable Legal team member will then provide the Request Form, setting forth the details of the evaluation for execution by the customer and GitLab. The Request Form and free access to the GitLab Software will be subject to the terms of the Evaluation Agreement which is attached to the Request Form.

Once the Request Form is executed, the sales team member or solutions architect should save the document in the customer's account in SFDC. The Sales Team member should then tag Sales Support in SFDC to assist in activating customer's free access to the GitLab Software for the applicable term and number of users.

Request for Non-Standard Go-To-Market and Pricing From Legal

All sales-related requests for a non-standard GTM structure, including pricing and packaging variations (e.g. OEM), will likely require Legal assistance but should begin with an Issue opened by the requestor on the Product board here to properly vet the monetization request with the appropriate cross-functional stakeholders. Please choose either the monetization-intake template or the monetization-intake-simple template. Once created, the issue will alert the appropriate stakeholders for internal review, comments, and approvals. Legal will follow the progress of the Issue, and will begin drafting the associated agreement, or non-standard language, after appropriate stakeholders have provided clear guidance on the approved structure.

EDUCATIONAL

Overview of GitLab Agreements

1. GitLab provides its software (both on-premise and SaaS) pursuant to the GitLab Subscription Agreement, and its professional services pursuant to GitLab Professional Services Agreement. You can find our online versions here.

1. GitLab provides full transparency by including historic versions of the subscription terms. These can be found within the Agreement History section.

1. The Subscription Agreement is agreed to by either: (i) customer clicking-through when purchasing (or downloading) software via the GitLab website, (ii) referenced in an order form that is signed by a customer, (iii) signing the negotiated subscription agreement, or (iv) passed through via partner if a customer is buying through an authorized partner.

1. Please note that for a net-new customer that meets the negotiation thresholds, a Legal Request may be opened to request a single agreement that covers both Subscription and Professional Service Terms.

1. GitLab has a Master Partner Agreement that can include multiple exhibits to enable partners to: (i) resell, (ii) refer, or (iii) distribute GitLab software and professional services.

When does GitLab Negotiate?

GitLab has certain thresholds when determining when, and to what extent, we will negotiate our standard terms. GitLab will consider engaging in negotiations as detailed here.

NOTE: This is available to GitLab team members only

If the net ARR threshold requirements are met, a Sales team member must open a Legal Request to ask for the most current agreement template. Please do not save an agreement template to a local drive as it may not be the most current version of the agreement. It is highly recommended that the Sales team member uses discretion and discusses the approach with the assigned Legal team member to set the appropriate expectations with the customer. Please see the Subscription Agreement basics below. While negotiation may be inevitable, it is always worth considering the following implications and how best to establish the tone of potential negotiations:

1. Negotiating on GitLab's Standard Agreement(s): GitLab's flexibility to accommodate deviations is tied in large part to a number of factors such as the opportunity amount, Net ARR (NARR), strategic importance and Landable Addressable Market (LAM). For example, minimal changes would be expected for a \$30K opportunity / NARR with immaterial future LAM.

- Note about Channel Partners: With regard to partners, eligibility for negotiations arises from partner categorization (Open Partner or Select Partner) as only Select partners will be allowed to negotiate terms.

1. Negotiating on customer's agreement template: Regardless of the NARR, a customer's agreement will almost always have terms that are unrelated to, and in some cases at complete odds with, the type of software we sell, how we license our software, and, in the case of professional services, how we implement our software.

If it is determined to utilize a customer's agreement, it is best practice to work with your assigned Legal team member to pre-emptively message and set expectations with the customer to help establish a level of trust and transparency, knowing that there will likely be extensive modifications and an increased time frame to finalize terms.

- Note about Ecosystem Partners: GitLab's Partner Program, and how GitLab enables its partners, makes utilizing a partner's form agreement much more difficult. It will require alignment across multiple cross-functional stakeholders and an additional level of scrutiny before moving forward. Please work with your Legal team member to help guide you through any such process.

What is Open Source?

1. GitLab uses open source software as part of its open core business model. Learn more about the GitLab Open Core Business Model.

1. For a general introduction to open source, including lists of acceptable and unacceptable open source licenses for use in GitLab, see Open Source at GitLab.

1. Helpful external resources on open source software can be found at [Opensource.com](https://opensource.com) and the Open Source Initiative.

1. The open source project for GitLab can be found at gitlab.com/gitlab-org/gitlab.

GitLab Subscription Agreement Basics

· Watch the "Subscription Agreement Basics" Video
{.h4}

Note: The video above is available to GitLab team members only

Business Associate Agreements (BAAs)

A Business Associate Agreement (BAA), or Business Associate Contract, is a legally binding contract between a covered entity and its business associates under HIPPA (Health Insurance Portability and Accountability Act) that outlines how Protected Health Information (PHI) will be handled and protected.

Why will GitLab not sign a BAA?

- GitLab is transparent with respect to information it requires, or does not require, in order to provide our products and services.

- GitLab does not require, nor is it designed to be used to store, Protected Health Information (PHI). In addition, GitLab, as an organization, does not desire or need to receive,

process, store, transact or otherwise possess PHI in order to provide our products and services. Please view Section 14.3 of the Subscription Agreement, which specifically highlights that GitLab should not receive PHI. As such, GitLab does not meet, and has no intention of meeting, the definition of a "Business Associate" as defined under the Health Insurance Portability and Accountability Act (HIPAA).

- In the event a customer questions "incidental disclosures," please highlight the HIPAA definition itself, which states: "Business associate functions or activities on behalf of a covered entity include claims processing, data analysis, utilization review, and billing. Business associate services to a covered entity are limited to legal, actuarial, accounting, consulting, data aggregation, management, administrative, accreditation, or financial services. However, persons or organizations are not considered business associates if their functions or services do not involve the use or disclosure of protected health information, and where any access to protected health information by such persons would be incidental, if at all."

Data Privacy, Security and the GitLab Data Processing Addendum

1. The GitLab Privacy Policy explains how GitLab collects, uses and shares customers' personal information, and how customers may exercise their rights with respect to that personal information. Additional details on privacy compliance at GitLab, including answers to a number of frequently asked questions concerning GDPR, can be found on the GitLab Privacy Compliance handbook page.

1. The GitLab Data Processing Addendum, usually referred to as the "DPA", can be accessed from the GitLab Terms of Use page. As stated in the GitLab Subscription Agreement, the terms of the DPA automatically apply to corporate customers.

1. When asking questions about data privacy, customers may also raise questions about security. Generally, such questions are best directed to the Field Security Team. However, the following resources may be useful prior to contacting the Field Security team:

- The Security Practices handbook page gives details about GitLab's organizational security.
- GitLab's Trust Center provides details and documentation of GitLab's current security and compliance policies.
- GitLab documentation explaining how to Secure your application, Secure your installation and the GitLab permissions guide are useful for helping customers understand steps they can take to secure the personal data processed by GitLab.

Contract Lifecycle Management (CLM) Process

1. Contract Lifecycle Management (CLM) is a tool that enables the Legal team to capture and report data related to legal and business terms in its Subscription Agreements. The ultimate goal of the CLM is to make the legal process more efficient during the CPQ / quote-to-cash process and provide more visibility into the internal request process. In order to facilitate this process please ensure that all executed agreements are sent, or otherwise copied to, the Legal team member assigned to the Legal Request.

1. Steps the Legal team follows after an agreement has been fully executed include:

- Uploading the fully executed agreement, which should already have been saved in the SFDC account by the Sales team member;
 - Completing the Intake Form with the information related to the agreement being uploaded;
- and
- Hitting "Save"

1. By uploading the agreement in the CLM, the information supplied via the Intake Form will be

stored in the CLM. The fully executed version will be stored in the CLM repository in addition to its location in SFDC.

NOTE: This is available to GitLab team members only.

REQUESTING CONTENT

- You are always encouraged to make requests for future content that will help you and the team. Simply complete the form here.

SECTION: legal/data-processing-agreement.md

GitLab Data Processing Addendum

SECTION: legal/dmca.md

DMCA (Digital Millennium Copyright Act) takedown request requirements

We take the intellectual property rights of others seriously and require that our users do the same. The Digital Millennium Copyright Act (DMCA) established a process for addressing claims of copyright infringement. If you own a copyright or have authority to act on behalf of a copyright owner and want to make a claim that a third party is infringing that copyright on or through GitLab's services, send a notice that meets the minimum requirements of the DMCA to dmca@gitlab.com, and we will take appropriate action.

DMCA notice requirements

You must include:

1. Identify the copyrighted work. A description of the copyrighted work that you claim is being infringed;
1. Identify the allegedly-infringing material. A description of the material you claim is infringing and that you want removed or access to which you want disabled and the URL or other location of that material;
 - Be as specific as possible. If you believe less than the whole project infringes, identify the specific project, file, or line numbers within a file a user would need to delete in order to remedy the infringement.
 - GitLab will not automatically disable forks of a project unless they are explicitly identified within the notice you send. It is your responsibility to determine that the material identified, including any fork(s) included in a notice, independently meet the notice requirements.
1. Provide contact information. Your name, title (if acting as an agent), address, telephone number, and email address;
1. Include the following statement: "I have a good faith belief that the use of the copyrighted material I am complaining of is not authorized by the copyright owner, its agent, or the law (for example, as a fair use)";
1. Include the following statement: "The information in this notice is accurate and, under

penalty of perjury, I am the owner, or authorized to act on behalf of the owner, of the copyright or of an exclusive right that is allegedly infringed"; and

1. Signature. An electronic or physical signature of the owner of the copyright or a person authorized to act on the owner's behalf.

Submissions under this DMCA Policy should be sent to dmca@gitlab.com.

We will review your submission and take whatever action we deem appropriate under the DMCA, including the removal of the challenged content from the website. Furthermore, we may, in appropriate circumstances, disable access or terminate the account(s) of the reported user(s).

DMCA counter-notice requirements

The owner of the allegedly-infringing content may submit a DMCA counter-notice to dmca@gitlab.com. The counter-notice must comply with the requirements of the DMCA, and must include the following:

1. Contact Information. Your name, title (if acting as an agent), physical address, email address, and phone number;

1. Content Identification. A reasonable identification of the material that has been removed or to which access has been blocked;

1. Statement under Perjury. Include the following statement: "I swear, under penalty of perjury, that I have a good faith belief that the material was removed or disabled as a result of mistake or misidentification of the material to be removed or disabled";

1. Consent to Jurisdiction. Include one of following statements (as appropriate):

- If based in the United States: "I consent to the jurisdiction of the Federal District Court for the judicial district in which my provided address is located"

- If based outside of the United States: "I consent to the jurisdiction of any United States Federal District Court in which GitLab may be found"

1. Consent to service of process. Include the following statement: "I will accept service of process from the person who provided the original notification or an agent of such person"; and

1. Signature. An electronic or physical signature of the owner of the copyright or the person authorized to act on the owner's behalf.

We will review the counter-notice, and:

- if the counter-notice doesn't satisfy the DMCA requirements, we'll request a revised submission; or

- if the counter-notice is complete and valid, we'll forward the counter-notice to the person who filed the original takedown notice, advising that the challenged content will be reinstated within 10-14 business days, unless we receive a notification that the copyright owner is seeking a court order regarding this matter.

Anti-Circumvention Technology

The DMCA prohibits the circumvention of technical protection measures that prevent access to copyrighted works. If you believe that content hosted on GitLab violates this prohibition, send a complaint to dmca@gitlab.com. The complaint should include the following:

1. Identify the copyrighted work. A description of the copyrighted work that is being protected

by the technical measure;

1. Identify the alleged circumventing content. Be sure to include detailed statements that describe:

- What the technical protection measures are;
 - How the technical protection measures effectively control access to the copyrighted work;
- and
- How the content hosted on GitLab is designed to circumvent those technical protection measures.

1. Provide contact information. Your name, title (if acting as an agent), address, telephone number, and email address;

1. Include the following statement: "I have a good faith belief that the use of the copyrighted material I am complaining of is not authorized by the copyright owner, its agent, or the law (for example, as a fair use)";

1. Include the following statement: "The information in this notice is accurate and, under penalty of perjury, I am the owner, or authorized to act on behalf of the owner, of the copyright or of an exclusive right that is allegedly infringed"; and

1. Signature. An electronic or physical signature of the owner of the copyright or a person authorized to act on the owner's behalf.

We will review your complaint and take whatever action we deem appropriate under the DMCA, including the removal of the challenged content. Furthermore, we may, in appropriate circumstances, disable access or terminate the account(s) of the reported user(s).

Trademark takedown request requirements

If you want to report content on GitLab that you believe infringes your trademark, provide the following information:

1. Details of the original trademark (and a description if it's a logo).

1. A list of the countries in which the trademark is registered.

1. The registration number(s) of the trademark.

1. A scanned copy of the trademark registration certificate(s) or screenshot of the registration on the website or database of the applicable national intellectual property office(s).

1. A declaration of the following statement: "By submitting this notice, I state that I have a good-faith belief that the reported use, in the manner that I have complained of, is not authorized by the intellectual property rights owner, its agent or the law; that the information contained in this notice is accurate; and, under penalty of perjury, that I am authorized to act on behalf of the owner of the intellectual property rights at issue".

You can send this information to dmca@gitlab.com, you should receive an automated confirmation of receipt.

Namespaces and other disputes

Disputes regarding namespaces, ownership and trademarks are not governed by DMCA. These disputes must be resolved by the parties involved. GitLab will never act as arbitrators or intermediaries in these disputes and will not take any action without the appropriate legal orders.

For more information, see our [Namespace and Trademark Policy](#) and [Ownership Dispute Policy](#)

EU Illegal Content Reporting

The DSA requires hosting services to provide a method for people to report content that is potentially illegal in the EU.

Please use the DSA form to report content that you believe is illegal in the European Union. This form should be used by individuals claiming legal rights in the EU, as well as individuals or entities designated as trusted flaggers pursuant to the DSA. Trusted flagger reports will be prioritized for review, in accordance with the DSA. We also ask individuals who report potentially illegal content in the EU to provide clear and concise information in English, or provide an English translation, wherever possible.

GitLab may restrict access to content determined to violate the law(s) of the EU country specified in your report. If you want to report a potential violation of GitLab's [Acceptable Use Policy](#) or [Community Code of Conduct](#) policies rather than an EU legal violation, please refer to this [guide on how to report abuse](#). Note that if you don't have a GitLab account, you can report potential violations by contacting the GitLab Trust and Safety team at abuse@gitlab.com.

Monthly active recipients in the European Union - Digital Services Act Article 24(2) Disclosure

The information below covers the reporting period from July 1, 2024 to December 31, 2024.

As of December 2024, GitLab.com has approximately 1,800,000 monthly average active recipients of the service in the European Union.

For non-logged-in users, our tracking relies on standard web analytics technologies. This methodology has inherent limitations, as users who access GitLab from multiple devices or browsers, or who have certain privacy settings enabled, may be counted more than once in our calculations. Conversely, multiple users sharing the same device might be undercounted. This means our reported number represents our best estimate of unique recipients based on available data. This approach is consistent with the DSA's guidance that providers should not perform specific tracking of individuals online to avoid double counting.

This information is provided solely to satisfy the requirements of the DSA and should not be used for any other purpose. This information may differ from user metrics, such as registered users, reported in other contexts.

SECTION: legal/dora.md

How GitLab addresses the key contractual requirements of the Digital Operational Resilience Act

Important Notice

The information in this summary is intended as an overview and outline of certain Digital

Operational Resilience Act ("DORA") related matters. Its purpose is to inform and raise awareness amongst GitLab's current and prospective customers who fall under the DORA regulation. This DORA Mapping does not provide legal advice and shall not be construed or used as such, nor does this document form part of, create or amend any agreement, representations, warranties or any other obligation between GitLab and its customers. Customers must seek and rely only on independent legal advice on any DORA related matter and customers acknowledge that they remain solely responsible for complying with their legal and regulatory requirements. GitLab shall have no liability arising from any errors, misstatements or omissions in the content of this DORA Mapping document.

Regulatory Context

The Digital Operational Resilience Act was created to harmonise security and resilience practices across Financial Entities ("FEs") operating in the European Union, and requires that all financial market participants, including stakeholders in the financial sector, which so far have not been subject to extensive ICT security regulation (credit institutions, payment institutions, account information service providers, electronic money institutions, investment firms, insurance companies, crypto-asset service providers, exchanges and clearing houses, alternative fund managers, pension, credit rating agencies, etc) can maintain resilient operations through severe operational disruption caused by cyber security and information and communication technology (ICT) issues. DORA does not override any existing cyber security regulations applicable to the financial sector (such as NIS-2, EBA etc), it exists alongside those. While GitLab has not historically been considered an outsourcing partner under the EBA Guidelines, DORA doesn't just apply to outsourcing arrangements, but to the use of all "ICT Services", casting a much broader net amongst information technology providers. Accordingly, GitLab wishes to help our customers better understand how they may comply with their DORA requirement in the context of their use of GitLab's DevSecOps platform. DORA officially came into effect on the 16th of January, 2023 and its provisions apply and are enforceable from the 17th of January, 2025 following the implementation period.

GitLab's Approach

This DORA Mapping document aims at assisting financial services customers that fall under the rules of DORA to navigate the use of GitLab's Software in relation to the various considerations introduced by DORA. With this document we'd like to make it easier for our financial sector customer to gather the necessary information for their own regulatory compliance. In the below table, you will find a list of requirements under DORA, alongside the references to the relevant information and GitLab policies.

GitLab's contractual framework relevant for DORA compliance purposes, consists of a number of components, which may include the following:

- GitLab Subscription Agreement ("GLSA") (or similar document entered into by the parties) includes the terms and conditions applicable to the use of GitLab's Software;
- Data Processing Addendum ("DPA") is incorporated into and forms integral part of the GLSA and sets out the data processing rules between the parties;
- Order Form -- includes the specific products/services purchased, pricing and any other specific commercial terms and conditions applicable;

- Statement of Work ("SOW") -- if Professional Services are purchased, the SOW includes the description and method of delivery of such services, as well as the assumption and specific obligations of the parties etc. our Professional Services team will work with you to discuss and determine your needs and requirements.

- Service Specific / Additional Terms -- depending on the products/services purchased, Additional Terms may apply, such as the AI Terms, Agile Planning, Professional Services Addendum etc; if you are considering GitLab Dedicated, our Sales team will be happy to assist you with any specific terms or provisions.

- Financial Services Addendum -- includes additional terms to address specific regulatory requirements applicable to our financial sector customers. Please contact your Account Executive if this regulatory addendum is relevant for your organisation.

All of the above listed documents are referenced in this DORA Mapping document where relevant. Further to the information included in the below informative chart, Gitlab had also engaged a reputable third party firm specialising in IT compliance attestation to perform a DORA related review and assessment of GitLab's Dedicated services - the summary of this report is available to view on GitLab's Trust Center.

The information in this document was current as of January 2025.

| DORA Requirements and considerations | DORA reference | GitLab's comment |

|---|---|---|

| Pre-contractual due-diligence and general principles | | |

| 1. The principle of proportionality and the assessment of risks and dependencies. The FEs management of ICT third-party risk shall be implemented in light of the principle of proportionality, taking into account: (i) the nature, scale, complexity and importance of ICT-related dependencies, (ii) the risks arising from contractual arrangements on the use of ICT services concluded with ICT third-party service providers, taking into account the criticality or importance of the respective service, process or function, and the potential impact on the continuity and availability of financial services and activities, at individual and at group level. | Art. 28 (1) b) | GitLab will assist our new or existing financial sector customers in assessing the nature of the services we provide, in the context of our products and the customer's chosen deployment method. In general, GitLab's DevSecOps platform is not expected to have a direct impact on the continuity and availability of GitLab's customers' ability to deliver financial services to their customers. Please contact your Account Executive with any risk or impact assessment related questions and queries. |

| 2. Information Security Standards. Financial entities may only enter into contractual arrangements with ICT third-party service providers that comply with appropriate information security standards. | Art. 28 (5) | At GitLab, we're committed to Information Security as detailed in our Security Vision and Mission. We created the GitLab Trust Center, powered by SafeBase, which allows us to maintain a single, unified location for communicating our compliance and assurance credentials, hosting our security and privacy documentation for customer consumption, sharing important notices such as responses to third-party breaches, and hosting our internal knowledge base where customers can readily access the same answers we provide in questionnaire responses. The GitLab Trust Center includes a portal for both GitLab.com and GitLab Dedicated. |

| 3. Access, audit and inspection. In exercising access, inspection and audit rights over ICT third-party service providers, financial entities must, on the basis of a "risk-based

approach", pre-determine the frequency of audits and inspections over third-party service providers and the areas to be audited. Where the ICT services entail high technical complexity, firms must ensure that they verify that the relevant auditors possess appropriate skills and knowledge to effectively perform the audits and assessments. | Art. 28 (6) | Our customers may carry out ongoing remote self-serve assessments via GitLab's Trust Center, a portal providing access to industry-standard documentation, including various certifications issued against widely recognised relevant professional standards by independent third-party auditors against the objectives stated in ISO 27001, ISO 27017, ISO 27018, SOC 2 Type 2 (or equivalent standards) and other reports and documentation attesting GitLab's policies, procedures and security measures. By signing up to the notification function of GitLab's Trust Center, customers will receive relevant notifications of future or updated versions of the certifications and other collateral. |

| 4. Termination rights. Financial entities must ensure that the contracts they have in place for the use of ICT services may be terminated in a list of circumstances detailed by the referenced article. | Art. 28 (7) a)--d) | GitLab's FSA addresses these regulatory termination rights. Please contact your Account Executive if this regulatory addendum is relevant for your organisation. |

| Key contractual provisions | | |

| 5. The rights and obligations of the financial entity and of the ICT third-party service provider shall be clearly allocated and set out in writing. The full contract shall include the service level agreements and be documented in one written document which shall be available to the parties on paper, or in a document with another downloadable, durable and accessible format. | Art. 30 (1) | The rights and obligations of the parties are set out in writing in the GitLab Subscription Agreement. SaaS service levels are set out in Appendix 1 to the Subscription Agreement and form part thereof. For GitLab Dedicated, a single product-specific attachment, including the respective Service Level Availability of Dedicated SaaS, is available upon request. |

| 6. A clear and complete description of all functions and ICT services to be provided by the ICT third-party service provider, indicating whether subcontracting of an ICT service supporting a critical or important function, or material parts thereof, is permitted and, when that is the case, the conditions applying to such subcontracting. | Art. 30 (2) a) | The description of all functions and services to be provided by GitLab, as set out in the relevant Order Form are included in GitLab's respective documentation published at <https://docs.gitlab.com/>. Both GitLab's FSA and DPA include the appropriate provisions on GitLab's use of subcontractors / sub-processors. GitLab's subprocesses are also listed at <https://about.gitlab.com/privacy/subprocessors/>, together with details of the relevant services and GitLab products with respect to each such sub-processors. |

| 7. The locations where the contracted or subcontracted functions and ICT services are to be provided and where data is to be processed, including the storage location, and the requirement for the ICT third party service provider to notify the financial entity in advance if it envisages changing such locations. | Art. 30 (2) b) | GitLab's FSA sets out location related specific provisions as required. The cloud hosting location for all cloud hosting Sub-processors are as listed at <https://about.gitlab.com/privacy/subprocessors/third-party-sub-processors>. To the extent applicable to Customer whose Services include GitLab's Dedicated software with a specified regional hosting location, as may be mutually agreed and described in an Order Form or Subscription Agreement as applicable, that hosting location will be as so designated. Customers opting for a Self-managed deployment method will install and run the Software on the Customer's own server and environment. |

| 8. Provisions on availability, authenticity, integrity and confidentiality in relation to the protection of data, including personal data. | Art. 30 (2) c) | GitLab's FSA sets out specific

provisions related to the availability, authenticity, integrity and confidentiality of data. The DPA sets forth both parties' obligation with respect to the processing and security of Personal Data, in accordance with applicable data protection laws, and also incorporates the applicable Standard Contractual Clauses. GitLab limits access to Personal Data to personnel who are required to access Personal Data in order to perform the obligations under the Agreement. Customers may also refer to GitLab's Privacy Statement. |

| 9. Provisions on ensuring access, recovery and return in an easily accessible format of personal and non-personal data processed by the financial entity in the event of the insolvency, resolution or discontinuation of the business operations of the ICT third-party service provider, or in the event of the termination of the contractual arrangements. | Art. 30 (2) d) | GitLab's FSA sets out specific provisions related to access, recovery and return of data. Customers may, at any time delete any groups through the in-product administrative settings or group dashboard of the Software or may migrate or export their projects at any time during the Subscription as described at

<https://docs.gitlab.com/ee/user/project/settings/importexport.html>. |

| 10. Service level descriptions including updates and revisions thereof. | Art. 30 (2) e) | SaaS service levels are set out in Appendix 1 to the Subscription Agreement and form part thereof. For GitLab Dedicated, a single product-specific attachment, including the respective Service Level Availability of Dedicated SaaS, is available upon request. Service levels are not applicable to Self-Managed customers who deploy and operate the application within their own environment and infrastructure. |

| 11. The obligation of the ICT third-party service provider to provide assistance to the financial entity at no additional cost, or at a cost that is determined ex-ante, when an ICT incident that is related to the ICT service provided to the financial entity occurs. | Art. 30 (2) f) | Provisions on incident reporting and cooperation are set out in the FSA. GitLab's incident management policy is available to review at

<https://handbook.gitlab.com/handbook/engineering/infrastructure/incident-management/>. |

| 12. The obligation of the ICT third-party service provider to fully cooperate with the competent authorities and the resolution authorities of the financial entity, including persons appointed by them. | Art. 30 (2) g) | GitLab's cooperation commitment is set out in the FSA. |

| 13. Termination rights and related minimum notice periods for the termination of the contractual arrangements, in accordance with the expectations of competent authorities and resolution authorities. | Art. 30 (2) h) | The GitLab Subscription Agreement clearly sets out termination rights and related notice or cure periods as applicable. GitLab also addresses the additional termination rights as per Art. 28 (7) under the DORA regulation which is included in the FSA. |

| 14. The conditions for the participation of ICT third-party service providers in the financial entities' ICT security awareness programmes and digital operational resilience training. | Art. 30 (2) i) | Provisions regarding GitLab's participation in the financial entity's ICT security awareness programmes are included in the FSA. |

SECTION: legal/dsa.md

```
<div class="row my-5 5align-items-start">
```

```
  <div class="col d-flex align-items-center rounded-3 p-4 shadow" style="background-color: 6e49cb; color: ffffff;">
```

```
    <div id="dsaFormDiv">
```

```
      <p class="h4">DSA Reporting Form</p>
```

```
<form action="https://us-central1-glsec-trust-safety-live.cloudfunctions.net/dsa-
webhook" method="post" id="dsaForm" target="hidden-form">
  <div class="mb-3">
    <label for="email" class="form-label">Your email address</label>
    <input name="email" type="email" required class="form-control">
  </div>
  <div class="mb-3">
    <label for="violation" class="form-label">Type of legal violation you are
reporting?</label>
    <select name="violation" required class="form-control" id="lang">
      <option value="violence">Violence</option>
      <option value="terrorist">Terrorist content</option>
      <option value="hateful">Hateful content</option>
      <option value="csam">Child sexual exploitation</option>
      <option value="harassment">Harassment</option>
      <option value="private">Private or personal information</option>
      <option value="copyright">Copyright or trademark infringement</option>
      <option value="other">Other legal issue</option>
    </select>
  </div>
  <div class="mb-3">
    <label for="location" class="form-label">Location or URL of
illegal content</label>
    <textarea name="location" type="text" required class="form-
control"></textarea>
  </div>
  <div class="mb-3">
    <label for="description" class="form-label">Please provide a detailed
description of why you believe this content is illegal</label>
    <textarea name="description" type="text" required class="form-
control"></textarea>
  </div>
  <div class="mb-3">
    <label for="country" class="form-label">EU member state you are
located in?</label>
    <select name="country" required class="form-control" id="lang">
      <option value="austria">Austria</option>
      <option value="belgium">Belgium</option>
      <option value="bulgaria">Bulgaria</option>
      <option value="croatia">Croatia</option>
      <option value="cyprus">Cyprus</option>
      <option value="czech">Czech Republic</option>
      <option value="denmark">Denmark</option>
      <option value="estonia">Estonia</option>
      <option value="finland">Finland</option>
      <option value="france">France</option>
      <option value="Germany">Germany</option>
      <option value="greece">Greece</option>
      <option value="hungary">Hungary</option>
      <option value="ireland">Ireland</option>
```

```

        <option value="italy">Italy</option>
        <option value="latvia">Latvia</option>
        <option value="lithuania">Lithuania</option>
        <option value="luxembourg">Luxembourg</option>
        <option value="malta">Malta</option>
        <option value="netherlands">Netherlands</option>
        <option value="poland">Poland</option>
        <option value="portugal">Portugal</option>
        <option value="romania">Romania</option>
        <option value="slovakia">Slovakia</option>
        <option value="slovenia">Slovenia</option>
        <option value="spain">Spain</option>
        <option value="sweden">Sweden</option>
    </select>
</div>
<div class="mb-3">
    <strong class="form-label">If you have any attachments or
    supporting documentation, please send them to
    abuse@gitlab.com</strong>
</div>
<div class="mb-3">
    <button type="submit" class="btn btn-lg btn-light">Submit</button>
</div>
</form>
</div>
<div id="thankyou" class="text-center align-items-center">
    <p class="h2 mb-4">Thank you for your submission!</p>
</div>
</div>
</div>

<iframe style="display:none" name="hidden-form"></iframe>
<div class="modal fade" id="videoModal" tabindex="-1" aria-hidden="true">
    <div class="modal-dialog modal-dialog-centered modal-dialog-scrollable modal-xl">
        <div class="modal-content">
            <div class="modal-header">
                <h5 class="modal-title" style="color: 000000;">GitLab DSA</h5>
                <button type="button" class="btn-close" data-bs-dismiss="modal" aria-
label="Close"></button>
            </div>
        </div>
    </div>
</div>
</div>
</div>

<script>
    $("dsaForm").on("submit", function(event) {
        console.log("Triggering submit");
        $("thankyou").show();
        $("dsaFormDiv").hide();
    });

```

```
</script>
```

```
<style>
```

```
  thankyou {
    width: 100% !important;
    display: none;
  }
  regiserFormDiv {
    display: block;
  }
  .modal.fade .modal-dialog {
    -webkit-transition: -webkit-transform 0.3s ease-out;
    -moz-transition: -moz-transform 0.3s ease-out;
    -o-transition: -o-transform 0.3s ease-out;
    transition: transform 0.3s ease-out;
  }
}
```

```
</style>
```

```
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```

```
## SECTION: legal/education-agreement.md
```

```
<!-- vale off -->
```

Education Program Agreement

Date of last revision: 2022/11/16

This Education Program Agreement ("Agreement") is between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 ("GitLab"), and the Educational Institution (as defined below) electronically accepting this Agreement ("Member"). This Agreement is entered into on the earlier of, (a) Member clicking "Agree" or "Yes" to the terms of this Agreement to gain initial access to, or use of, the Software or (b) Member is given access to the Software pursuant to the requirements of the GitLab for Education Program ("Effective Date"). GitLab and Member each shall be referred to as a "Party" and collectively as the "Parties".

1. DEFINITIONS

"Affiliate" means any entity(ies) controlling, controlled by, and/or under common control with a party hereto, where "control" means the ownership of more than 50% of the voting securities in such entity.

"Commercial Terms" means the GitLab Subscription Agreement located at <https://about.gitlab.com/terms/>, which shall only be applicable in the event: (i) Member wishes to purchase the Software, or (ii) Member uses the Software in any manner other than the Acceptable Purpose (as set forth in Section 2 below).

"Community Edition Software" means the publicly available, community-developed open-source software and components which may be provided with the Software.

"Educational Institution" means a degree-granting academic facility that: (i) has been

accredited by an authorized governmental agency within its applicable local, state, provincial, federal or national government and has the primary purpose of teaching its enrolled students, (ii) is a non-for-profit institution.

"GitLab for Education Program" means the program guidelines and overview as found at <<https://about.gitlab.com/solutions/education/join/>> as updated from time to time, which include directions, rules and requirements for participation.

"Software" means software, and other branded offerings made available by GitLab or its Affiliate(s), including but not limited to, GitLab's DevOps Lifecycle Application Platform.

"Instructional Use" means activities directly related to learning, training, or development including academic instruction that are part of the instructional functions of the Educational Institution.

"Intellectual Property Rights" means all intellectual property rights throughout the world, including, without limitation, patents, copyrights, Trademarks, trade secrets and contractual or other rights in confidential information, moral rights, rights of privacy and publicity, and any other intellectual and industrial property and proprietary rights including registrations, applications, renewals and extensions of such rights worldwide.

"Non-Commercial Academic Research" means not-for-profit research projects, which are not intended to, or do not in fact, produce results, works, services, or data for commercial use or the sole benefit of the Educational Institution or any third-party.

"Member Content" is all software, information, content and data provided by or on behalf of Member or made available or otherwise distributed through the use of the Software.

2. PURPOSE

2.1 Subject to the terms of this Agreement and the GitLab for Education Program, GitLab grants Member a non-exclusive, limited, revocable, worldwide, non-sublicensable and non-transferable right for Member to use the Software solely for: (a) Instructional Use, and/or (b) Non-Commercial Academic Research ("Acceptable Purpose").

2.2 Member is not obligated to pay for use of the Software under the GitLab for Education Program. However, if Member uses the GitLab Software for any purpose other than the Acceptable Purpose, Member shall be obligated to pay for such use of the GitLab Software, including payment for any periods of misuse prior to the discovery of such misuse in accordance with the Commercial Terms.

2.3 The GitLab Software shall be provided without support and GitLab shall have no obligation to render any "Support" as such term is defined in the Commercial Terms.

3. REGISTRATION & USE RIGHTS

3.1 Member shall follow the registration or credentialing requirements (if any) established by GitLab within this Agreement and the GitLab for Education Program.

3.2 Member shall only be entitled to participate in the GitLab for Education Program provided

that it (1) uses the Software only for the Acceptable Purpose, and (2) that it remains an Educational Institution. If at any time, at GitLab's sole discretion, Member no longer meets the requirements to participate in the GitLab for Education Program, or violates the terms of this Agreement, GitLab shall provide thirty (30) days written notice to Member of its finding(s), and this Agreement and Member's ability to participate in the GitLab for Education Program shall terminate.

3.3 In accessing and using the Software and GitLab for Education Program materials, Member agrees not to (and not to authorize any third party to): (a